

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YESENIA MOZ CASTRO,	)	Case Number: FDV-23-816763
Petitioner	)	Hearing Date: August 20, 2026
VS.	)	Hearing Time: 9:00 AM
JUAN CARLOS MENENDEZ FUNES,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)
TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Yesenia Moz Castro (Mother) and Respondent Juan Carlos Menendez Funes (Father) have one minor child together, Valerie (DOB 4/29/2021, age 5). On 7/19/2023, this Court issued a 2-year Domestic Violence Restraining Order (DVRO) against Father protecting Mother. The Court awarded sole legal and sole physical custody of Valerie to Mother, with one hour of weekly parenting time for Father, supervised by the maternal grandmother. The Court ordered that the grandmother may cancel the visit if she is not available or if she believes Father is not sober.
- 2) On 2/11/2026, Father filed a request for parenting time every Saturday from 1PM to 5PM. He stated he did not see Valerie after 2024 because Mother did not let him see her. He stated that Mother recently asked him if he would agree to have her current husband adopt Valerie.
- 3) Mother filed a response denying she did not let Father see Valerie. She stated that despite her offers, Father saw Valerie only 3 or 4 times over the years, spent only 10 to 30 minutes with her each time, had not seen her since 2/24/2024, and had not called her on her birthday or other special occasions. Mother stated she also assumed the parental role for Father's other

daughter Victoria for some time because Father was unable to care for her, had multiple DVROs against him, and had lost custody of a son.

- 4) At a 4/30/2026 hearing on Father's request, the Court ordered that Father shall have visits every Saturday from 6:30PM to 7:30PM, supervised by the maternal grandmother. On 4/30/2026 (the same day as the hearing), Mother filed a new request to suspend visits, reiterating many of the same points she made in her original request. Mother's 4/30/2026 request and a review of the 4/30/2026 order were set for hearing on 8/20/2026.
- 5) Father filed an update declaration on 7/9/2026 stating the visits are going well and he wishes to continue seeing Valerie. He attached a May 2026 certificate for completion of a parenting class from Kids' Turn.
- 6) The parties attended mediation on 7/15/2026 and were unable to reach an agreement. Mother stated she wishes to suspend visits; Father stated he wishes to have additional time with Valerie and a FaceTime call with her once a week.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The Court finds it is in Valerie's best interest to maintain the current order for sole legal and physical custody to Mother and for Father to have one, 2-hour visit with Valerie every Saturday, from 5:30PM to 7:30PM, to be supervised by the maternal grandmother. In addition, Father may initiate a FaceTime call to Valerie once per week (Mother shall provide Father with a phone number or email address where Valerie can be reached on a phone or iPad or similar device), on Wednesday at 7PM. Given Valerie's young age, the Video call is expected to last about 5 or 10 minutes but may be longer if the parties agree.
- 3) All communication between the parties shall be respectful and peaceful, and only about Valerie.
- 4) All other orders not in conflict with these orders shall remain in full force and effect.
- 5) The Court will prepare the Findings and Order After Hearing.